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File No.: EXP202213697

RESOLUTION No.: R/00248/2023

Considering the complaint filed on November 17, 2022, before this Agency by A.A.A. on behalf of B.B.B. (hereinafter the complainant), against VODAFONE ESPAÑA, S.A.U. (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF A80907397, and their request, as stated by the complainant, did not receive the legally established response.

The complainant states that they requested access from the respondent on October 18, 2022, to the geolocation data of each of the lines contracted with the respondent.

Along with the complaint, a copy of the access request sent to the respondent and the response from the respondent dated October 20, 2022, is provided, in which they indicate that such data is not recorded in their files. The complainant expressly requests that no data related to the location of these telephone lines be deleted.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on February 13, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days it could present any allegations it deemed appropriate.

Said entity, after the admission for processing, has not made any allegations.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to prove that it had provided the complainant with the appropriate response, in

the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

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In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement for processing. Once this period has elapsed, the interested party may consider their claim accepted.

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to commence a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the claimant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

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The exercise of this right may be considered repetitive on more than one occasion during the period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a

disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised their right of access, and this has not been addressed.

To this request, Vodafone responded on October 20, 2022, providing access to the personal data held in its systems regarding the claimant and indicating the reasons why it was not possible to provide the historical data of the location and localization of their telephone lines, and the personal data that were indeed recorded in Vodafone's systems were indicated.

We must now analyze whether the request made by the claimant and denied by the respondent is part of the right of access and therefore must be addressed.

According to the respondent: “...by virtue of the provisions of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, the claimant's request exceeds the scope of the exercise of the right of access to their personal data, since Vodafone retains location and localization data exclusively under the provisions of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, which establishes the retention obligations and their transfer only to public agents for the expressly established purposes, and always with prior judicial authorization in accordance with Article 6 of that law. Consequently, Vodafone

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can only provide access to such information to the authorities within the framework of a criminal investigation and with prior judicial authorization. This is also in accordance with the provisions of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the enforcement of criminal sanctions, which, together with the aforementioned Law 25/2007, constitutes special legislation in this matter in relation to data protection regulations...”

FIFTH. Right of access in relation to data that must be preserved in accordance with Law 25/2007, of October 18.

The argument of the responding party, in which it seeks to justify its refusal to provide location data of the lines owned by the claiming party, focuses on indicating that “Vodafone retains location and localization data solely under the provisions of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, which establishes the obligations of retention and its transfer only to public agents for the expressly established purposes, and always with prior judicial authorization in accordance with Article 6 of that law.”

In this regard, the responding party continues to argue, “Vodafone can only provide access to such information to the authorities within the framework of a criminal investigation and with prior judicial

authorization.”

In this respect, the following should be noted: first, Article 15.1 of the GDPR establishes that “The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and to the following information.”

Additionally, paragraphs 3 and 4 of Article 15 establish the following:

“3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

For its part, Recital 63 of the GDPR states the following:

“Data subjects should have the right to access personal data concerning them and to exercise that right easily and at reasonable intervals, in order to be aware of and verify the lawfulness of the processing. This includes the right of data subjects to access data relating to health, for example, data from their medical records that contain information such as diagnoses, test results, assessments by healthcare professionals, and any treatments or interventions carried out. Therefore, every data subject should have the right to know and to be informed...”

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They shall communicate, in particular, the purposes for which personal data is processed, the duration of processing, its recipients, the implicit logic in any automated processing of personal data, and, at least when it is based on profiling, the consequences of such processing. If possible, the data controller must be empowered to provide remote access to a secure system that offers the data subject direct access to their personal data. This right must not adversely affect the rights and freedoms of third parties, including trade secrets or intellectual property, and, in particular, the intellectual property rights that protect software programs. However, these considerations must not result in the refusal to provide all information to the data subject. If a large amount of information relating to the data subject is processed, the data controller must be empowered to request that, before the information is provided, the data subject specifies the information or processing activities to which the request refers.

The responding party does not dispute the nature of personal data of the information requested by the claimant. Thus, the provisions of the right of access would fully apply to them. It merely asserts that it would not be obliged to grant such a right because, in its opinion, its retention would be legally established solely for the purpose of being made available to the security forces, subject to judicial authorization, in accordance with the provisions of Law 25/2007, of October 18.

However, once the character of "personal data" of the requested information is determined, the only exceptions that may be established regarding the exercise of any rights set forth in Articles 15 to 22 of the Regulation will be those legally established.

In this regard, Article 9 of the aforementioned Law 25/2007 establishes the following:

“Article 9. Exceptions to the rights of access and cancellation.

1. The data controller shall not communicate the transfer of data made in accordance with this Law.

2. The data controller shall deny the exercise of the right of cancellation under the terms and conditions provided in Organic Law 15/1999, of December 13.”

It can easily be noted that no restriction is established regarding the possibility of exercising the right of access. It only contains the obvious precautions that the data subject shall not be informed of the transfer of the data (an obvious issue given that it concerns criminal investigations), and that the right of deletion cannot be exercised.

The conclusion is that the location data of the telephone line may be subject to a request for the right

of access.

SIXTH. Exercise of the right and conditions for its attention by the responding party.

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In this case, the complainant exercises their right of access concerning seven mobile telephone lines:

***PHONE.1, ***PHONE.2, ***PHONE.3,

***PHONE.4,

***PHONE.5,

***PHONE.6

and

***PHONE.7.

It is important to clarify what has already been stated regarding the exercise of the right of access: it will be exercised in relation to the personal data "concerning them" (art. 15.1 GDPR). In this regard, the responding party must take the necessary precautions to ensure that only the personal data that pertains to the complainant is provided to the complainant, as the latter is the user (not just the holder) of the mobile telephone line. All of this is in consideration of the risks to the rights and freedoms of the data subjects.

Therefore, after analyzing all the issues, it is confirmed that the access granted by the responding entity is incomplete and the complaint is upheld.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by B.B.B. and to instruct VODAFONE ESPAÑA, S.A.U. with NIF A80907397, to send to the complainant, within ten working days following the notification of this resolution, a certification that addresses the requested right of access or provides a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of the infringement considered in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to B.B.B. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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